

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge William J. Martínez

Courtroom Deputy: Emily Seamon
Court Reporter: Gwen Daniel

Date: October 25, 2012

Civil Action No. 10-cv-02529-WJM-KMT

Counsel:

DAVID GUARA,

Plaintiff,

Gregory Fasing
James Carleo

v.

CITY OF TRINIDAD, a City Municipality,

Defendant.

J. Andrew Nathan
Marni Nathan Kloster

COURTROOM MINUTES

JURY TRIAL - DAY FOUR

Appearances

09:07 a.m. Court in Session - jury not present

Discussion regarding Plaintiff's rebuttal argument, closing arguments, and an issue regarding the testimony of Mr. Trammell.

09:11 Jury present

DEFENDANT'S SEVENTEENTH WITNESS JASON LUCAS

09:13 Direct (by Ms. Nathan)

DEFENDANT'S EIGHTEENTH WITNESS PHIL MARTIN

09:21 Direct (by Ms. Nathan)

EXHIBIT IDENTIFIED, OFFERED AND RECEIVED:
A-56

09:31 Cross (by Mr. Fasing)

09:37 Redirect (by Ms. Nathan)

DEFENDANT'S NINETEENTH WITNESS CLAYTON LEPLATT

09:40 Direct (by Ms. Nathan)

09:44 Cross (by Mr. Fasing)

09:45 Redirect (by Ms. Nathan)

DEFENDANT'S TWENTIETH WITNESS ARSENIO VIGIL

09:47 Direct (by Mr. Nathan)

09:53 Cross (by Mr. Fasing)

09:58 Redirect (by Mr. Nathan)

10:00 Defendant Rests

10:01 Jury excused

10:02 Defendant's Rule 50 motion (by Mr. Nathan)

10:10 Response Argument (by Mr. Fasing)

Court asks questions of Mr. Nathan.

Court's findings and conclusions entered on the record.

ORDERED: Defendant's Rule 50 motion is DENIED.

10:20 Court in Recess

10:38 Court in Session - jury not present

Discussion regarding closing arguments.

ORDERED: Defendant's Rule 50 motion for judgment as a matter of law on its affirmative defense is DENIED.

Jury Instruction Conference

EXHIBIT IDENTIFIED, OFFERED AND RECEIVED:

15

EXHIBIT IDENTIFIED, OFFERED AND RECEIVED:
27 (objection overruled)

10:51 Jury present

10:52 Court instructs the jury on the law.

11:24 Plaintiff's Closing Argument (by Mr. Fasing)

11:49 Court in Recess

11:59 Court in Session - jury present

12:00 Defendant's Closing Argument (by Mr. Nathan)

12:42 Plaintiff's Rebuttal Argument

12:58 Jury Bailiffs sworn

12:59 Jury excused for deliberation.

1:00 Court in Recess

3:38 Court in Session

Court's comments

The jury has reached a verdict.

3:40 Jury present

The Court reads aloud the Verdict Form and polls the jury.

The jury is excused with the thanks of the Court.

3:46 Jury excused

Court's concluding remarks

3:47 p.m. Court in Recess

Trial concluded

Time: three hours and 34 minutes

Clerk's Note:

"Pursuant to General Order 2008-03 the original Jury Verdict has been filed conventionally by delivery to the clerk's office. A representation of the Jury Verdict is attached to the court minutes."